

## **Guardianship Tentative Rulings**

**June 2, 2025**

**8:30 a.m.**

**\*\*\*DUE TO ONGOING CONSTRUCTION IN THE COURTHOUSE ALL COUNSEL AND PARTIES IN GUARDIANSHIP MATTERS ARE ENCOURAGED TO APPEAR REMOTELY THROUGH WEBEX FOLLOWING THE INSTRUCTIONS BELOW- PLEASE DO NOT MAKE A PERSONAL APPEARANCE UNLESS NECESSARY OR ORDERED TO DO SO**

**\*\*\*\*\*The June 2, 2025 guardianship calendar will be called in Department 53. \*\*\*\*\***

The Court's Self Help Center is available by phone and email to assist Guardians and Petitioners. The Self-Help Center does not assist with Guardianships of the Estate. Please see the Court's website for updated information and contact information for the Court's Self Help Center.

**To appear through WebEx, please follow these instructions:**

**Call 1-(844) 517-1271 between 8:20 – 8:30 a.m.**

**The access code is 1464798527 There is no attendee ID number, so just follow verbal instructions for prompt.**

**Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:**

- 1. Please mute your telephone until your case is called;**
- 2. Please do not place the call on hold;**
- 3. Minimize all background noise during your call;**
- 4. Please identify yourself, each time, prior to speaking with the court;**
- 5. Disconnect when the court has completed your case or cases;**
- 6. The court prohibits the recording of these proceedings.**

## **IN RE: BARRY**

**Case Number: 25CV-0207449**

**Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-**Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

Petitioners/Guardians Stacey and Hector Barry (maternal grandparents) seek to change the name of their minor ward. The Petition contains the following defects:

1. CCP § 1277 requires that a copy of the Order to Show Cause ("OSC") be published in a newspaper of general circulation once a week for four consecutive weeks. No proof of publication has been filed. The Court notes a copy of a proof of publication attached to the Petition for an older case; this proof of publication is insufficient for the present case as it gave notice for a different case and hearing date entirely.
2. CCP § 1277(f) requires the Guardians to personally serve the parents at least 30 days before the hearing and if either, or both, parents are deceased then the living grandparents must also be personally served 30 days before the hearing. According to the information provided by the Guardians, the mother is deceased and therefore the OSC is required to be personally served on the father and the paternal grandparents. No proof of service is on file. Insufficient information has been provided to dispense with notice to these parties.

This matter is continued to **Monday, July 14, 2025, at 1:30 p.m. in Department 42** for further proceedings on the Petition for Change of Name. The Petitioners shall file an Amended Order to Show Cause for the continued hearing date. The Amended Order to Show Cause must be personally served on the father and paternal grandparents at least 30 days before the hearing. In the alternative, Petitioners can submit a declaration reflecting their efforts to locate and serve these individuals including their last known residences. Petitioner must also file a proper proof of service. **No appearance is necessary on today's calendar.**

## **GUARDIANSHIP OF LEONARDO BOUNLEUTTAY**

**Case Number: CVPG18-0029802**

**Disclosure Re: guardianship cases involving Shasta County Health and Human Services Agency-**Judge Wood discloses that her step-daughter, Erinn Watts, is the Administrative Branch Director of the Health and Human Services Agency. In that position, Judge Wood's step-daughter does not have any involvement in the investigation, management, prosecution or defense of guardianship cases. However, the Court makes this disclosure of an employment relationship between an investigating agency and the Court's first degree relative as required by California Code of Judicial Ethics.

This matter is on calendar for further proceedings regarding a Petition for Transfer of Venue filed by the Guardian on January 6, 2025. An Amended Petition has not been filed to cure any defects noted at the hearing on March 3, 2025. A Notice of Hearing has not been filed or served for today's